

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

13. JOY VELLA V. WILLIAM VELLA

23FL0247

Petitioner filed a Request for Order (RFO) on May 21, 2026, seeking post-judgment modification of both child and permanent spousal support. Petitioner concurrently filed an Income and Expense Declaration. Respondent was personally served in accordance with Family Code section 215 on June 1, 2026.

Respondent filed a Responsive Declaration on September 9, 2026, along with an Income and Expense Declaration. Both were served on September 9, 2026. Respondent objects to the requested modifications.

The court has read and considered the filings as outlined above. The court finds it must take testimony on the issue of the modification of child support as there is a factual dispute as to the time share. Parties are ordered to appear to select Mandatory Settlement Conference (MSC) and trial dates.

As to the post-judgment request for spousal support orders, generally speaking, the court is required to take evidence on, and address the Family Code § 4320 factors when ruling on a post-judgment request for modification of spousal support. However, as a threshold issue to that, the moving party must show that there has been a material change in circumstances to warrant a change in support. In re Marriage of Kuppinger, 48 Cal. App. 3d 628 (1975). Here, after reviewing the filings of the parties as outlined above the court finds that Petitioner has failed to establish any change in circumstances which would warrant a change to spousal support. The request is therefore denied.

All prior orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #13: PARTIES ARE ORDERED TO APPEAR TO SELECT MANDATORY SETTLEMENT CONFERENCE (MSC) AND TRIAL DATES ON THE REQUEST TO MODIFY CHILD SUPPORT.

AS TO THE POST-JUDGMENT REQUEST FOR SPOUSAL SUPPORT ORDERS, PETITIONER HAS FAILED TO ESTABLISH ANY CHANGE IN CIRCUMSTANCES WHICH WOULD WARRANT A CHANGE TO SPOUSAL SUPPORT. THE REQUEST IS THEREFORE DENIED.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

14. TRAVIS BASKINS V. DESTINEE BASKINS

PFL20200285

Respondent filed a Request for Order (RFO) on July 7, 2026, seeking a motion to compel discovery responses, as well as sanctions. Upon review of the court file, the Proof of Service states “all documents for motion to compel [sic] all documents for tentative ruling notice.

Petitioner has not filed a Responsive Declaration.

The court drops the matter from calendar due to the lack of proper service. The court is unable to determine what documents were served on Petitioner based on the Proof of Service filed.

TENTATIVE RULING #14: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.